

SENATE BILL 1624

By Massey

AN ACT to amend Tennessee Code Annotated, Title 2,
Chapter 19, relative to the Transparency for
Deepfakes in Political Advertising Act.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. This act is known and may be cited as the "Transparency for Deepfakes in Political Advertising Act."

SECTION 2. Tennessee Code Annotated, Section 2-19-120(a), is amended by adding the following as a new subdivision:

(6)

(A) Such communication, when in audio form, if considered a deepfake as defined in § 39-17-1902 and impersonating a candidate for elected office engaging in speech in which the candidate did not in fact engage, shall clearly state at the beginning and at the end of the communication:

This communication contains fake content impersonating speech that did not occur.

(B) Such communication, when in video form, if considered a deepfake as defined in § 39-17-1902 and depicting a candidate for elected office engaging in action or speech in which the depicted candidate did not in fact engage, shall clearly state in large letters for the duration of the video:

(i) If the communication includes only video media:

This communication contains fake content depicting actions that did not occur.

(ii) If the communication includes both audio and video media of a candidate engaging in action or speech in which the candidate did not engage:

This communication contains fake content depicting actions and speech that did not occur.

(C) When the impersonated or depicted candidate is not an incumbent office holder, subdivisions (a)(6)(A) and (a)(6)(B) apply only if the communication is distributed within one hundred twenty (120) days of the initiation of voting in an election in which the candidate for elected office appears on the ballot.

(D) A person or entity who is a broadcaster, host, third-party producer, or carrier of such communication is not liable under this subdivision (a)(6) unless the person or entity is responsible for the communication.

(E) An impersonated or depicted candidate for elected office who is the subject of a deepfake communication as described in this subdivision (a)(6) is entitled to damages and equitable relief as provided for in § 39-17-1904, with the exception of § 39-17-1904(c).

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it.